

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-30

NIELSEN & BAINBRIDGE, LLC

v.

OCEAN NETWORK EXPRESS PTE. LTD.

ONE’S UNOPPOSED SECOND MOTION TO EXTEND DEADLINES

COME NOW Respondent Ocean Network Express Pte. Ltd. (“Respondent” or “ONE”), by its undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, as well as to the ALJ’s Order date June 17, 2026 denying ONE’s Unopposed Second Motion to Extend Deadlines Without Prejudice (Dkt. # 19), hereby re-submits ONE’s Unopposed Second Motion to Extend Deadlines¹ (“Motion”) alone and respectfully requests an extension of the deadlines set forth in the Presiding Officer’s April 24, 2026 Amended Scheduling Order a second time to accommodate the current progress of the Parties’ discovery, which is progressing as quickly as possible. As applicable, Respondent reiterates in this Motion some of the same arguments raised in its previous motion.

I. The Current Schedule

On April 24, 2026, the Presiding Officer entered an Amended Scheduling Order with the following deadlines relevant to this Motion:

¹ Respondent is mindful that two of the deadlines effected by this motion have passed. For the reasons explained below, Respondent would have not been able to submit sufficient detail on why the extension of time is needed prior to this filing and respectfully request, with the consent of Complaint, that the Presiding Officer accepts this late filing.

EVENT	CURRENT DEADLINE
Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories	06/09/2026
Substantial completion of productions of documents and ESI in response to initial RFPs	06/09/2026
Parties file Joint Status Report 3 regarding status of discovery	06/17/2026
Complete depositions of fact witnesses	07/10/2026
Last day to serve interrogatories, requests for admission, and RFPs	07/10/2026
Disclosure of initial expert reports, if any	07/22/2026
Disclosure of rebuttal expert reports, if any	07/31/2026
Complete expert depositions and all discovery	08/12/2026
Close of fact discovery	08/12/2026
Complainant's initial brief, proposed findings of fact, and appendix	09/09/2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	10/08/2026
Complainant's reply and responses to proposed findings of fact	10/21/2026

II. Respondent's Position

As previously reported, Respondent has been working diligently with its data vendor on the review of the 1.4 million documents potentially responsive to Complainant's document requests and their production to Complainant. Due to the sheer volume of documents involved and the limited time available, ONE opted to rely on a Generative Artificial Intelligence ("GenAI") prompt to assist with identifying potentially responsive documents. Following several iterative rounds of ONE collaborating with its data vendor to create the necessary GenAI prompt, extensive quality control measures by both the data vendor and ONE's counsel has revealed that many of Complainant's broad discovery requests tend to initially capture more unrelated documents than not. In an effort to keep the document review process even remotely on track, ONE's data vendor has recently switched over to the manual review of documents concurrent with the perfection of

the GenAI prompt. In the end, minor delays turned into larger ones as more effort was made to ensure that responsive documents were identified.

During this entire process, Respondent has been in constant contact with its data vendor. And, ONE has focused on assisting with the review process. Admittedly, ONE should have alerted Complainant and the FMC to these issues earlier. ONE believed that substantial completion of document production could be achieved by June 9th. However, that is not the case.

Even now, ONE is still trying to determine, with a reasonable level of accuracy, the pace at which additional documents can be produced. The unfortunate reality is that our data vendor cannot provide concrete numbers until the review of each set of documents has been completed. As such, we are left with starting figures and estimates.

On May 8, 2026, Respondent served its first production of 1,062 documents amounting to roughly 2,100 pages. Respondent is still in the process of reviewing a set of about 69,000 potentially responsive documents. Respondent has not been able to complete the quality control on its second production of documents from this set by June 17, 2026, as originally expected. The second production of documents is now expected to be served on Complainant the week of June 22, 2026. Our current information is that the next set of nearly 380,000 potentially responsive documents can be reviewed within the week of June 29, 2026, and to be on track to substantially complete the production of documents within the week of July 19, 2026. Respondent is still expecting to continue to produce smaller sets of documents requiring redactions on a rolling basis. These types of documents are not specific to Complainants. At this time, Respondent has not received an estimate from its vendor on the amount of documents requiring redaction. Based on Respondent's experience in other similar matters the documentation is expected to be substantial. Of course, given our hard learned experience, margins for delay need to be considered.

In short, Respondent remains committed to searching this large data set and producing responsive documents. At the outset, Respondent knew this would take a long time due to the volume of potentially responsive documents to consider even with objections to the scope of certain document requests. Apparently, Respondent was too optimistic about how long this process would take. In retrospect, alerting Complainants and the FMC sooner would have been ideal, but Respondent was preoccupied with determining whether there would be a delay, the extent of the delay, and how to speed up the review process.

III. Complainant's Position

Complainant does not oppose the present Motion for an extension, as the inability to timely receive and review documents from Respondent prevents Complainant from assessing the adequacy of Respondent's productions, assessing appropriate deponents, scheduling depositions of those deponents, taking such depositions, and engaging in the expert discovery necessary in this action, which in turn will cause irreparable harm to Complainant's ability to prosecute its claims under the present scheduling order absent the requested extension.²

Complainant has further satisfied its obligations under the present scheduling order—making three rolling productions constituting substantial completion to Respondent between April 7, 2026 and May 29, 2026, totaling over 150,000 pages—and does not oppose the present Motion so that the Parties can remain on equal footing with respect to discovery and preparing the case for argument on the merits.

² Further, “If a party or a party’s officer or authorized representative fails or refuses to obey an order requiring it to make disclosures or to respond to discovery requests, the presiding officer upon his or her own initiative or upon motion of a party may make such orders in regard to the failure or refusal as are just”. 46 C.F.R. § 502.150(b). In light of such failures, a Presiding Officer may: “(1) Direct that the matters included in the order or any other designated facts must be taken to be established for the purposes of the action as the party making the motion claims” (i.e., make adverse inferences), “(2) Prohibit the disobedient party from supporting or opposing designated claims or defenses, or from introducing designated matters in evidence;” or “(3) Strike pleadings in whole or in part; staying further proceedings until the order is obeyed; or dismissing the action or proceeding or any party thereto, or rendering a decision by default against the disobedient party.” *Id.*

The Parties jointly acknowledge that the prompt resolution of claims and disputes arising under the statutes administered by the Commission is a crucial goal, one that the deadlines for issuing initial and final decisions are intended to achieve, and that scheduling orders are an essential part of that process.

IV. Progress to date

Aside from Respondent's initial production noted above, Complainant's total productions of documents to date amount to 66,445 documents. A first production of 24,968 document amounting to 42,194 pages was received on April 6, 2026. A second production of 18,017 documents amounting to 38,861 pages was received on April 29, 2026. A third production of 23,460 amounting to 88,598 pages was received on May 29, 2026, practically doubling the total number of pages of Complainant's production.

Once Respondent's productions are substantially completed, the Parties will still need the time to review the voluminous batches of document productions and prepare to take potentially numerous depositions. Respondent notes that, at this point in time, Complainant has identified around 50 potential facts witness in its initial disclosure and response to discovery demands, 26 of which appear to be former NBG's employees, and several others appear to be employees of third parties the relevancy of which is to be determined³. Respondent has identified 14 potential ONE employees that may be called as fact witnesses, subject to revision or potential reduction once Respondent has substantially completed document production.⁴

³ Respondent notes that Complainant's initial disclosures were provided prior to the severance of the Respondents that are parties in the related proceedings filed by Complainant.

⁴ Respondent acknowledges the ALJ's remark that it is unlikely that the ALJ will grant leave for the parties to take more than 20 deposition and will work with Complaint in an effort to reduce the number of depositions needed. However, at this time it is not possible to make a reasonable determination on the number of witnesses needed for the parties to present their claims and defenses.

The parties are also mindful that the recently issued Initial Decision in 20230930-DK-*Butterfly-1, Inc. F/K/A Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Dkt. No. 23-02, 2026 WL 1285696 (ALJ April 24, 2026), addresses issues similar to some of those raised in this proceeding and will be working on narrowing the issues before them including through the use of experts. The experts' involvement will become more prominent after the review of the parties' productions and through the deposition of facts' witnesses' phase.

Even taking into account the Parties' efforts to working together in narrowing the issues, this request is based on the pace of Respondent's productions and reviews even when using all resources and all good faith efforts. The Parties note that, even if Respondent had substantially completed its productions on June 9th, the Parties would likely have still sought an extension of time to review such voluminous documents in advance of depositions, and anticipate that the Parties may seek such an extension if necessary at a future date. That said, to address the present discovery schedule in any workable manner, using all reasonable efforts, ONE respectfully submits that the request made herein be granted.

V. Good Cause Exists to Extend the Current Deadlines

A. Large Discovery Volumes Contribute to the Need for an Extended Timeframe

The facts concerning the status of discovery can be summarized as follows: the Parties have worked diligently and cooperatively in order to meet the Scheduling Order's June 9, 2026 deadline for substantial completion of document (including ESI) production, have made rolling productions of documents to one another, and have met and conferred, but as explained the volume of the documentation and other vendor related issues prevented Respondent the meeting of that deadline.

From the documents collected, both Parties must manually review them for the information they offer, organize them, address any privilege issues and finally marshal a working knowledge of all to allow further steps, such as depositions, to be done in a meaningful manner. That process necessarily requires substantial time and care. This review will cover hundreds of thousands of documents to be reviewed by the Parties for production.

The Parties have continuously worked with their respective e-discovery partners to streamline the process as much as possible and continue to do so, but there is no question the entire process has been time and effort intensive.

As a part of the ongoing review and rolling productions process, the Parties will need to work to review the substantial amount of documents that are pulled in by the Parties' ESI Protocol terms. The Parties submit that the substantial volume of documents, the need for thorough review, and the pace that the documents can be intelligently reviewed is a good cause reason for an extension of time to ensure that the Parties can complete their discovery obligations effectively and each Party is not prejudiced by the fact that a very large amount of documents have been collected in accord with discovery demands properly put forth. In sum, this is not a routine case.

B. The Large Discovery Volumes Will Impact Other Case Milestones

The Parties remain respectful of the deadlines set forth in the April 24, 2026 Scheduling Order, and to date have worked together diligently and collaboratively to satisfy its terms. However, the complexity and the expected size of the responsive documentation has made it clear to the Parties that even with all their best efforts, they will not be able to complete production and review of document discovery within the present deadlines. Consequently, the Parties would not be able to adequately prepare for and take depositions based upon a full factual record and further

would not be able to present their respective claims and defenses adequately in their respective briefs or in any eventual trial in this action.

The Parties have and continue to work to limit the need for any discovery-related disputes to be brought before the Presiding Officer. To facilitate this goal while providing the Presiding Officer with timely updates, the Parties propose providing a Fourth Status Report to the Presiding Officer by August 4, 2026.

In making this Motion, the Parties have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

Although the Parties will continue to endeavor to adhere to the ordered schedule, the sheer volume of documents may make for an impossible situation as is the case now. Other reasons may include issues arising from the collection and production of documents located abroad or in the custody of non-parties, the need for significant Party depositions, or the need for testimony from non-parties or individuals located abroad (including employees of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available. However, in the interest of full transparency, the Parties wish to note such possible issues to the Presiding Officer now.

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

Respondent is well aware that the deadlines in this case have been already extended once but respectfully submits that the complexity of this case, and the doctrine of fairness, warrant some flexibility in respect to the completion of discovery. Fairness is not just an issue for Respondent. It is an issue for Complainant and the Commission as well, because if mistakes are made, or if documents are missed by rushing the production process, or if pertinent information that the Commission could have relied upon is inadvertently missed, the consequences can mean that settlement opportunities are regrettably lost, or the quality of the decision by the Commission is flawed.

Respondent acknowledges the admirable goal set out by the Commission to ensure the prompt resolution of claims and disputes administered by the Commission. Respondent also appreciates how Scheduling Orders and deadlines are an important part of this process and are not to be taken lightly. However, in recognition of the importance of fairness, it is not unusual for the deadlines for completion of discovery and/or for the issuance of initial and final decisions to be extended by administrative law judges and the Commission, and for scheduling orders to be revised accordingly. Indeed, when matters involve substantially large amounts of documents and witnesses, decisions on the merits tend to require more time than allotted under the same regulations.

There are also policy considerations which favor allowing sufficient time for a full development of the evidentiary record before an agency, rather than enforcing strict adherence to a particular schedule. See *Hudson Shipping (Hong Kong) Ltd. d/b/a Hudson Express Lines* — Possible Violations of Section 10(a)(1) of the Shipping Act of 1984, 29 S.R.R. 1376, 1377 (ALJ 2002)(policy and responsibility of Commission and, by delegation of authority, presiding judge, to inquire into and consider all relevant facts; of even greater importance than the concept of

fairness between the parties, as they maneuver to develop a record which fits their positions, is the need to ensure that justice is served and all relevant facts are considered by the Commission). Stric adherence to a schedule should not override these policy considerations. See also, *Anderson International Transport and Own Anderson — Possible Violations of Sections 8(a) and 19 of the Shipping Act of 1984*, 31 S.R.R. 1091 (FMC 2009) (citing policy considerations discussed in Hudson as basis for reopening the record).

This is the second request for an extension, the first from ONE, and ONE respectfully submits is reasonable, and necessary under the circumstances.

VI. Conclusion

Given that Respondent is still working diligently to review and produce documents, and that the Parties will need time to review such documents once produced, the Parties respectfully submit that an extension of the deadlines in the Presiding Officer's April 24, 2026 Scheduling Order is necessary to allow the Parties a fair opportunity to review and conclude their respective production of documents, review such productions from the opposing party or third parties, depose each other's respective fact and expert witnesses, and assess any additional discovery. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed to prepare for and conduct depositions following Respondent's substantial completion or for other reasons, will seek to raise them as soon as the need appears and, where possible, file them jointly.

ONE therefore requests the following amended Scheduling Order for substantial completion of document (including ESI) production, which is unopposed by Complainant:

EVENT	DEADLINE
Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories	07/28/26
Substantial completion of productions of documents and ESI in response to initial RFPs	07/28/26
Parties file Joint Status Report 4 regarding status of discovery	08/04/26
Complete depositions of fact witnesses	08/27/26
Last day to serve interrogatories, requests for admission, and RFPs	08/27/26
Disclosure of initial expert reports, if any	09/10/26
Disclosure of rebuttal expert reports, if any	09/24/26
Complete expert depositions	10/08/26
Close of discovery	10/08/26
Complainant's initial brief, proposed findings of fact, and appendix	11/09/26
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	12/09/26
Complainant's reply and responses to proposed findings of fact	12/23/26

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainants and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement.

WHEREFORE, the Respondent prays that its Second Motion to Extend Deadlines be granted.

[Executed on the following page]

Dated: June 18, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this, June 18, 2026, the foregoing ONE's Unopposed Second Motion to Extend Deadlines was served via electronic mail on:

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